

Ram Kripal Singh And Another vs State Of U.P. And Another on 28 February, 2023

HIGH COURT OF JUDICATURE AT ALLAHABAD

Court No. - 71

Case :- APPLICATION U/S 482 No. - 4703 of 2006

Applicant :- Ram Kripal Singh And Another

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Munna Pandey

Counsel for Opposite Party :- Govt. Advocate

AND

Case :- APPLICATION U/S 482 No. - 13088 of 2005

Applicant :- Ram Abhilash Singh

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- A. Chaturvedi

Counsel for Opposite Party :- Government Advocate

Hon'ble Mrs. Sadhna Rani (Thakur),J.

As both the above applications relate to the same charge sheet where in same prayer for quashing the charge sheet dated 9.10.1999 in case crime no. 42 of 1998 under section 216-A I.P.C., police station Manikpur District Chitrakoot is made, so these applications are being heard together and disposed of by a common order.

As per the facts of the case, on 1.8.1998 at 12.07 p.m. an FIR was lodged by Sri R.A. Bharti SHO Manikpur, District Chitrakoot that on 31.7.1998 when along with the police party, he was patrolling at 12.30 a.m. on 1.8.1998, he received an information from the informer that a gang leader Dadua @ Shiv Kumar along with his gang members and some other persons is about to commit an offence. They made an ambush. At 5.00 a.m. on 1.8.1998, they heard the coughing sound of a person from the eastern side. The police party was alerted. One person of the gang realized the presence of the

police there. By alerting his companions he shouted and exhorted them to attack the police. During this encounter about 700 rounds of firing was made from the decoits side and about 358 round of firing was made from the side of police. Three decoits were shot dead by the police and some decoits got injured in the encounter. The decoits collecting the weapons of their dead companions made good their escape, along with their injured companions. The deceased decoits could not be recognized. The empty cartridges, live cartridges and the articles left by the decoits i.e. medicines, badge, shoes, name plate named Gunda Prasad e.t.c. were collected from the spot. The case was registered in case crime no. 42 of 98 under sections 147, 148, 149, 307 I.P.C. and 12/14 Arms Act as well as case crime no. 43/98 under section 25-A of Arms Act, police station Manikpur, District CSN, against 12 named persons by Station House Officer Sri R.A. Bharti on 1.8.1998 at 12.07 hours.

After investigation the initial charge sheet was filed against the above mentioned accused persons. Further in the same case crime number supplementary charge sheet no. 42-A of 1999 was filed against Ram Sajivan (Member of Parliament Banda), Ram Kripal Singh Patel (MLA), both were elected from Karvi and Manikpur respectively, Daddu Prasad and Ram Abhilash, the brother of Ram Kripal Singh Patel under section 216-A I.P.C..

An application under section 482 Cr.P.C. No.4703 of 2006 was filed by Ram Kripal Singh Patel and Daddu Prasad and another application under section 482 Cr.P.C. No. 13088 of 2005 was filed by Ram Abhilash Singh with a prayer to quash the charge sheet dated 9.10.2019 submitted in case no. 42/98 under section 216-A I.P.C. and further a prayer to issue a direction to A.C.J.M. Chitrakoot not to arrest the applicants in pursuance of order dated 6.8.2005 throughailable warrants, was also made.

It is submitted by the learned counsel for the applicants that when on 1.8.1998 the decoits managed to escape, the police party made recovery of various articles left by the decoits including a Railway coupon issued in the name of Ram Kripal Singh Patel (MLA) which was valid up to 31.5.1998. The statements of police personnel who were party in the aforesaid encounter were recorded under section 161 Cr.P.C. By the aforesaid recovery, the Investigating Officer came to the conclusion that gang members had close relations with the aforesaid MLA Ram Kripal Singh Patel. One personal guard of Ram Kripal Singh Patel was shot dead in the said incident due to which the brother of the applicant along with other B.S.P. activists staged road protest against the police and narrated the atrocities committed by the police force. As the personal guard of MLA Ram Kripal Singh Patel died in a false encounter, the police made inquiry about Ravi Shankar Pal who was actually encountered and it was found that he was a history sheeter. Statement recorded under section 161 Cr.P.C. of Ram Narayan Arkhu in a different case, was endorsed in the general diary wherein he stated that the gang leader was being supported by Ram Kripal Singh Patel and his brother Ram Abhilash by making the house of Ram Kripal Singh Patel available to the decoits. Ram Kripal Singh Patel is said to have made available the keys of his house having factory in it to the decoits. On the basis of aforesaid record available in the police station, as per paper cuttings and on the basis of the information of the informant, the other material collected during investigation in case crime no. 42/98, the Investigating Officer in order to shield his act of false encounter implicated the above political persons under section 216 A I.P.C. with the allegation that these politicians were helping and shielding these criminals.

It is argued that the GD entry, the information given by the informer, statement of witnesses under section 161 Cr.P.C. in other case, cannot be the basis of filing charge sheet against the applicants. There is no credible evidence against the applicants and no recovery has been made from them and without serving summons bailable warrants have been issued against them.

It was also argued by the learned counsel for the applicants that in case crime no. 42/98 all the accused persons i.e. the alleged decoits have been acquitted vide judgments dated 27.5.2016 and 7.2.2017. When the main accused persons have been acquitted, naturally no offence could be said to be made out against the present applicants for giving shelter to those accused persons. Inviting attention of the court towards the judgment of R.P. Kapur Vs. State of Punjab, 1960 AIR 862 and Anand Kumar Mohatta and another Vs. State (Government of NCT of Delhi) Department of Home and another) 2018 LawSuits (SC) 1138, it is further argued that where it manifestly appears that there is a legal bar against the institution or continuance of the said proceedings and from the mere perusal of the complaint of first informant, no offence is made out against the applicants and no legal evidence is adduced in support of the case, the High Court can be justified in quashing the proceedings on these grounds only and further on the basis of the judgment of Anand Kumar (supra) wherein a reference of judgment of State of Haryana & ors Vs. Bhajan Lal and ors, 1992 Suppl. SCC 335 is made, out of 7 grounds mentioned therein where the court can use its extraordinary powers, learned counsel for the applicants argued that he relies on 4 grounds out of 7 mentioned herein- (1) where the allegation made in the FIR even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused,

2. Where controverted allegations made in the FIR or complaint and the evidence collected in support of the same do not disclose the commission of any offence,

3. Where the allegations made in the FIR are so absurd and inherently improbable on the basis of which no prudent person can ever reach a just conclusion that there is sufficient ground for proceeding against the accused,

4. Where a criminal proceedings is manifestly attended with malafide and / or where proceeding is manifestly attended with an ulterior motive for wrecking vengeance on the accused and with a view to spite them due to personal grudge, the High court can exercise its extraordinary powers.

Learned counsel for the applicants argued that allegations made in the FIR are so absurd that no prudent man can ever reach on a just conclusion that there is sufficient ground for proceeding against the accused and the criminal proceeding is maliciously instituted with a view to spite them due to personal and private grudge. As the personal gunner of MLA Ram Kripal Singh Patel was killed by the police in a false encounter, so the police had a grudge with Ram Kripal Singh Patel and his brother Ram Abhilash. It is further argued that as per section 216-A I.P.C. whoever knowing or having reason to believe that any person is about to commit or has recently committed robbery or decoity harbors them or any of them with intention of facilitating the commission of such robbery or decoity such person shall be punished under this section and it is submitted that there was no reason to believe that the applicants had knowledge that the decoits had recently committed robbery

or they were about to commit any robbery, hence, offence under section 216-A I.P.C. cannot be said to be made out against the applicants. Further it is argued that in whole case diary, except the statement of Ram Narayan Arakh recorded in some other cases, there is no evidence against the applicant Ram Abhilash implicating him under section 216-A I.P.C. He is the brother of applicant Ram Kripal Singh Patel who is living separate from him, hence, prayer is made to quash the charge sheet under section 216-A I.P.C. against the applicants.

Learned A.G.A. however opposed the applications.

A counter affidavit was filed by the opp. party no. 2 and it was alleged that during investigation the name of the applicants came into light regarding giving shelters to the accused persons thus after completion of investigation against the named applicants the chargesheet has been filed against them. Mere submission of chargesheet and taking cognizance do not amount the abuse of the process of law.

Rejoinder affidavit was filed by the applicants and the version of the affidavit filed with the application under section 482 Cr.P.C. was reiterated that without any credible evidence, the charge sheet had been filed against the applicants and the court had also taken cognizance against them. The cognizance order is illegal, arbitrary and is passed without applying its judicial mind by the court.

From perusal of the record, it is found that railway coupon though it was an expired one, issued in the name of Ram Kripal Singh Patel was found from the place of recovery where the decoits were staying in jungle. During investigation, it was found that on the basis of statements of the witnesses and police personnel that the decoits used to stay in the house of Ram Kripal Singh Patel where there is a factory. The personal guard of MLA Ram Kripal Singh Patel is also said to have died in the alleged encounter of the police with the decoits. Applicant Daddu Prasad and Ram Abhilash are said to help to decoits by providing them money otherwise also. It has come on record that the decoits, in return of these facilities provided to them by the applicants, used to create fear and panic among the public at the time of election. Thus, the chargesheet was filed against the applicants.

Otherwise also from the perusal of the charge sheet, a cognizable offence is said to have been made out against the applicants. Whether the ingredients of the offence are complete or not, is a matter of evidence. At this stage, the court cannot enter into the facts of the case.

So far as acquittal of the accused persons in case crime no. 42/98 is concerned, those accused persons are said to have been acquitted on the sole ground that they were not identified by the police personnel who participated in the encounter. Charge sheet no. 44 of 1999 had been filed under sections 147, 148, 307/149 I.P.C. and Section 12 (B) Decoity Affected Area Act, and the charge sheet no. 44-A of 1999 against rest four applicants has been filed under section 216-A I.P.C., so acquittal of the accused persons chargesheeted under section 147, 148, 149, 307 I.P.C. & Section 12 (B) DAA Act does not entitle the present applicants to get the charge sheet filed against them quashed. The grounds taken here for quashing of chargesheet by the applicants' counsel can be argued by them before the trial court at the time of framing charge or at the time of final arguments.

The arguments advanced by the learned counsel for the applicants do not inspire confidence. The aforesaid applications are devoid of merits and are liable to be dismissed.

The above applications under section 482 Cr.P.C. are hereby dismissed.

Order dated:- 28.2.2023.

Gss